# CONTRACT OF EMPLOYMENT

This Contract of Employment (the "**Contract**") is made on 12 October 2026 (the "**Effective Date**").

**BETWEEN**

(1) **KILATPAY TECHNOLOGIES SDN. BHD.** (Company No. SAMPLE-MY-1511), a company incorporated in Malaysia with its registered office at Unit 3A-08, Blok Contoh, Jalan Contoh PJU 1/45, 47301 Petaling Jaya, Selangor, Malaysia (the "**Company**"); and

(2) **DANIEL LIM SAMPLE** (NRIC No. SAMPLE-000000-10-1511), of No. 9, Jalan Contoh SS 2/77, 47300 Petaling Jaya, Selangor, Malaysia (the "**Employee**").

**BACKGROUND**

(A) The Company is an early-stage technology company that develops and sells mobile payment and point-of-sale software to small merchants, and is preparing to expand its sales operations into other countries in the region.

(B) The Company wishes to employ the Employee as a Sales Executive, and the Employee wishes to accept that employment, on the terms and subject to the conditions of this Contract.

## 1. DEFINITIONS AND INTERPRETATION

1.1 In this Contract, unless the context requires otherwise:

"**Business**" means the business of developing, marketing, selling and supporting payment, point-of-sale, e-wallet and merchant software and related services, and any other business carried on by the Company or any Group Company at any time during the employment.

"**Commencement Date**" means 2 November 2026.

"**Confidential Information**" has the meaning given in Clause 10.1.

"**Group Company**" means the Company and any holding company or subsidiary of the Company, wherever incorporated.

"**Salary**" means the basic monthly salary set out in Clause 4.1, excluding commission, allowances and bonus.

"**Training Costs**" means all costs incurred by the Company in connection with the Employee's training and development, including course fees, external trainers, certification fees, travel, accommodation and the Salary paid while the Employee attends training.

1.2 Headings are for convenience only and do not affect the interpretation of this Contract. References to a clause are to a clause of this Contract. The words "including" and "includes" do not limit the generality of the words that precede them. Words in the singular include the plural and the other way round.

## 2. APPOINTMENT

2.1 The Company employs the Employee as a Sales Executive with effect from the Commencement Date. The Employee reports to the Head of Sales, or to any other person the Company nominates from time to time.

2.2 The Employee's duties are to identify and sign up new merchants, demonstrate the


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Company's products, meet the monthly sales targets set by the Company, maintain accurate records in the Company's sales system, and carry out any other duties that the Company reasonably assigns.

2.3 The Employee's normal place of work is the Company's office in Petaling Jaya. The Employee may be required to visit merchants anywhere in Selangor and the Federal Territories, and to travel elsewhere in Malaysia for trade events, for which reasonable travel expenses will be reimbursed.

2.4 The Employee warrants that the Employee is not bound by any agreement or restriction that would prevent the Employee from taking up this employment, and that the information given by the Employee during the recruitment process is true and complete.

## 3. PROBATION

3.1 The Employee's employment is subject to a probationary period of six (6) months from the Commencement Date (the "**Probation Period**"). During the Probation Period the Company will assess the Employee's performance, conduct, attendance and suitability for the role.

3.2 The Company may extend the Probation Period at its sole discretion for such further period or periods as it thinks fit, by written notice to the Employee given at any time before the Probation Period (as extended) ends. The Employee shall not be regarded as confirmed in employment unless and until the Company issues a written letter of confirmation.

3.3 During the Probation Period, and any extension of it, the Company may terminate the employment by giving the Employee one (1) week's written notice or Salary in lieu of notice. The Employee may resign during the Probation Period by giving one (1) month's written notice.

## 4. REMUNERATION

4.1 The Company shall pay the Employee a basic monthly salary of RM 3,800 (Ringgit Malaysia Three Thousand Eight Hundred only), payable in arrears by bank transfer on or before the seventh (7th) day of the following month.

4.2 The Employee is eligible for monthly sales commission under the Company's sales commission scheme, as amended from time to time. Commission is paid only on merchant fees actually received by the Company and only while the Employee remains employed and has not given or received notice of termination.

4.3 The Company may, in its absolute discretion, pay the Employee an annual performance bonus. Any bonus is paid as an advance against the Employee's continued service, and is unrecovered to the extent that the Employee leaves the Company within twelve (12) months after the date of payment.

4.4 The Company shall make contributions for the Employee to the Employees Provident Fund, the Social Security Organisation (SOCSO) and the Employment Insurance System at the statutory rates, and shall deduct the Employee's share of those contributions and monthly tax deductions from the Salary.

## 5. TRAINING AND RECOVERY OF COSTS

5.1 The Company intends to enrol the Employee in its regional sales academy programme and in external product certification courses during the first year of employment. The Company


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estimates the Training Costs for that programme at RM 15,000 (Ringgit Malaysia Fifteen Thousand only).

5.2 In consideration of the Company bearing the Training Costs, the Employee agrees that if the employment ends for any reason within twenty-four (24) months after the Commencement Date, the Employee shall repay the Company the full Training Costs, without any reduction for the period served.

5.3 The Employee authorises the Company to deduct training costs and any unrecovered bonus, together with any other sums the Employee owes to the Company, from the Employee's monthly Salary, commission and final salary. If those sums are not enough, the Employee shall pay the balance to the Company within seven (7) days of demand.

## 6. WORKING HOURS

6.1 The Employee's normal working hours are 9.00 a.m. to 7.00 p.m., Monday to Saturday, with a one (1) hour lunch break each day. The Employee may also be required to attend merchant visits, product launches, trade events and team meetings outside those hours, including on Sundays and public holidays.

6.2 The Employee acknowledges that the nature of a sales role requires flexibility, and that the Salary has been set at a level that reflects this. Accordingly, all overtime is deemed included in the salary and is unpaid, and the Employee shall not be entitled to any additional payment or time off in lieu for work performed outside normal working hours.

6.3 The Employee shall record attendance using the Company's mobile attendance application. Late attendance on three (3) or more occasions in a calendar month may be treated as misconduct.

## 7. LEAVE

7.1 The Employee is entitled to paid annual leave in accordance with the Employment Act 1955, being eight (8) days for each year of service during the first two (2) years, increasing as provided in that Act. Leave must be applied for at least fourteen (14) days in advance and approved by the Head of Sales.

7.2 The Employee is entitled to paid sick leave and hospitalisation leave in accordance with the Employment Act 1955, on production of a medical certificate from a registered medical practitioner or a medical officer.

7.3 The Employee is entitled to maternity leave or paternity leave, and to the paid public holidays gazetted for the State of Selangor, in accordance with the Employment Act 1955 and the Holidays Act 1951.

## 8. NOTICE AND TERMINATION

8.1 After confirmation, the Employee may terminate the employment by giving the Company not less than three (3) months' written notice. The Company may, at its discretion, refuse to accept salary in lieu of notice from the Employee and require the Employee to work the full notice period.

8.2 After confirmation, the Company may terminate the employment by giving the Employee one (1) week's written notice or one (1) week's Salary in lieu of notice.


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8.3 The Company may terminate the employment immediately without notice if the Employee commits any act of serious misconduct, wilful disobedience, dishonesty or gross negligence, after such inquiry as is required by law.

8.4 On termination the Employee shall return all Company property, including laptops, mobile phones, demonstration devices, merchant files and access cards, together with all documents and records relating to merchants, and shall confirm in writing that no Company data remains on any personal device.

## 9. EXCLUSIVE SERVICE

9.1 During the employment the Employee shall devote the whole of the Employee's working time and attention to the Business and shall not, without the Company's prior written consent, be engaged in any other paid work, except for holding passive investments of up to five per cent (5%) of the shares of any listed company.

## 10. CONFIDENTIALITY

10.1 "**Confidential Information**" means all non-public information relating to the Business, including merchant lists, pricing, sales pipelines, product roadmaps, source code, security arrangements and financial information, which the Employee obtains in the course of the employment. It excludes information that is public through no fault of the Employee.

10.2 During the employment and for three (3) years after it ends, the Employee shall keep the Confidential Information confidential and shall not use or disclose it except in the proper performance of the Employee's duties, or as required by law or by order of a court.

10.3 On termination, or at any earlier time when the Company asks, the Employee shall return all documents and materials containing Confidential Information and permanently delete all copies held on any personal device or account.

## 11. INTELLECTUAL PROPERTY

11.1 All intellectual property rights in any sales materials, presentations, scripts, reports, software and other works that the Employee creates in the course of the employment and in performing the Employee's duties belong to the Company from the moment of creation.

11.2 The Employee shall promptly disclose such works to the Company and shall sign any documents reasonably required to confirm the Company's ownership. This Clause does not apply to works the Employee creates outside working hours without using Company resources or Confidential Information.

## 12. RESTRICTIONS AFTER EMPLOYMENT

12.1 In view of the Confidential Information and merchant relationships to which the Employee will have access, the Employee undertakes that for a period of two (2) years after the employment ends, the Employee shall not, anywhere in Southeast Asia, directly or indirectly, whether as employee, consultant, director, shareholder, partner or otherwise, be engaged or interested in any business which competes or intends to compete with the Business.

12.2 For twelve (12) months after the employment ends, the Employee shall not solicit for a competing business any merchant of the Company with whom the Employee had material dealings during the last twelve (12) months of the employment.

12.3 The Employee agrees that the restrictions in this Clause 12 are reasonable and necessary to protect the Company's legitimate interests, and that if the Employee breaches them, the Company shall be entitled to an injunction in addition to any other remedy.

## 13. PERSONAL DATA

13.1 The Employee consents to the Company processing the Employee's personal data for the purposes of the employment, including payroll, statutory contributions, insurance, performance management and compliance, in accordance with the Personal Data Protection Act 2010.

## 14. GOVERNING LAW AND JURISDICTION

14.1 This Contract is governed by and shall be construed in accordance with the laws of Malaysia.

14.2 Any dispute arising out of or in connection with this Contract is subject to the jurisdiction of the courts of Malaysia, without prejudice to the Employee's rights to refer any matter to the Director General of Labour or the Industrial Relations Department.

## 15. GENERAL

15.1 This Contract is the entire agreement between the parties relating to the employment and replaces any earlier offer letter, discussion or understanding. Any variation must be in writing and signed by both parties.

15.2 The Company's employee handbook and policies, as amended from time to time, apply to the Employee but do not form part of this Contract. Where a policy conflicts with this Contract, this Contract prevails.

15.3 If any provision of this Contract is found to be invalid or unenforceable, that provision shall be severed and the remaining provisions shall continue in full force and effect.

## SIGNATURES

Signed for and on behalf of **KILATPAY TECHNOLOGIES SDN. BHD.**

Signature: _____

Name: _____ Designation: Chief Executive Officer

Date: _____

Accepted and agreed by the Employee, **DANIEL LIM SAMPLE**

Signature: _____

Date: _____


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